



File No.: EXP202312067

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 9, 2023, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against 4FINANCE SPAIN FINANCIAL SERVICES, S.A.U. (hereinafter, the respondent) for not having duly addressed their right to erasure.

The complainant states that, on June 5, 2023, they requested the respondent to close their account and erase their personal data (email address, phone number, full name, ID number, and postal address), receiving a positive response on June 7, 2023, through which the entity confirmed the erasure of their data and the blocking of it, indicating the following: "We have proceeded to erase your record in our database... your data will remain blocked..."

However, the complainant states that a few days later, they received a promotional communication from the respondent at their email address, so on June 11, 2023, they reiterated their request for data erasure. From this last request, they received a response on June 15, 2023, confirming the erasure of their data in the same terms as the previous response.

The complainant states that, despite the confirmation of the erasure of their data, the respondent has not effectively erased the data, as they continue to process it, since on June 24 and July 7, 2023, they again received commercial communications at their email address.

Along with the complaint, a thread of emails maintained with the respondent is provided, relating to the requests for erasure and the positive responses regarding them, as well as the commercial communications received at the complainant's email address (***EMAIL.1), the last of which is dated July 7, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent indicates that on February 10, 2022, they received an email from the complainant, from ***EMAIL.1, attaching the corresponding data erasure form, and that on the 15th of the same month, the requested erasure was processed, and it was...

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2/6

responded to the client indicating that their data had been deleted, attaching a copy of both emails.

"-Subsequently, on April 18, 2023, at 22:17:24 hours, a "new registration attempt" (Lead) was made without being completed, from the email of the complainant ***EMAIL.1; we attach a screenshot of this (Lead): (...)

It is for this reason that the A.A.A. has received various communications to their email, ***EMAIL.1, in the months of June and July 2023, despite having requested (again) the deletion of their data on June 5, 2023, as they indicate in the complaint to your agency.

In our company, when managing that right to data deletion exercised on June 5, 2023 (and reiterated on June 11, 2023), it was verified that the client's data was "deleted," but it was only checked in the initial record created on January 14, 2017. Therefore, from our entity, we responded to the A.A.A., both on June 7, 2023, and June 15, 2023, that their data was marked as deleted. The "new registration attempt" (lead) made on April 18, 2023, was not verified, and consequently, they continued to receive communications to their email ***EMAIL.1."

"Finally, regarding the previous email, we have sent another email to the A.A.A. (of which we attach a screenshot below), in which it is indicated that their data had already been deleted, and this was

confirmed to them on July 21, 2023, at 12:25 hours. However, in light of the complaint submitted to your agency, the deletion was reconfirmed on October 13, 2023: (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied, given that from the response sent to this Agency by the responding party, it is deduced that they did not respond to the complaining party in accordance with the provisions of Article 12.4 of the LOPDGDD. Consequently, on October 9, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the responding party a hearing procedure, so that within ten working days they could present the allegations they deemed appropriate, reiterating, in summary, what had already been answered to the transfer of the complaint,

"(...) In accordance with the above, when managing the second data deletion requested by the A.A.A., the entity did not initially verify the "LEAD" created (subsequently) to the first data deletion, in which no identifying data of the client (name, surname, NIE...) was recorded, but it contained the complainant's email data, and this is what caused them to receive emails.

However, subsequently, the data from the incomplete record created on April 18, 2023, which included the email data of the A.A.A., was also deleted, and this deletion of data (definitively), as has been..."

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3/6

It has been demonstrated that the claimant was confirmed both in an email dated July 21, 2023, at 12:25 PM, and subsequently, after the complaint was filed with the AEPD, in emails dated October 13, 2023."

FOURTH: After examining the document submitted by the responding party, it is transferred to the claimant, so that, within a period of ten working days, they may formulate any allegations they deem appropriate, summarizing that they had to contact the responding party several times to properly address their rights.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in

Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was transferred to the responding party for analysis, requiring a response to this Agency within one month and proof that the claimant was provided with the appropriate response.

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4/6

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on October 9, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

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5/6

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data

without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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6/6

V

Conclusion

In the case analyzed here, from the examination of the documentation provided, it has been established that the complainant exercised their right to erasure and that this, despite the respondent indicating that they had proceeded to erase the data, was not duly addressed, as the complainant continued to receive communications from the respondent.

During the processing of this procedure, the respondent has verified that the error was due to the complainant having two records. Therefore, they have proceeded to erase their data and to communicate this.

Consequently, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, reconciling the information in the file with the regulations referred to in the preceding paragraphs, it is appropriate to uphold the present complaint on formal grounds, as the right has been addressed out of time, without requiring additional actions by the data controller.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD on formal grounds, the complaint filed by Mr. A.A.A. against 4FINANCE SPAIN FINANCIAL SERVICES, S.A.U. However, it is not appropriate to issue a new certification by the respondent, as the response has been issued out of time, without requiring additional actions by the

controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to 4FINANCE SPAIN FINANCIAL SERVICES, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating contentious-administrative jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Data Protection Agency

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